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**23**rd plenary meeting
Tuesday, 31 October 2023, 10 a.m.
New York

*President*: Mr. Francis . . . . . (Trinidad and Tobago)

*The meeting was called to order at 10.05 a.m.*

**Agenda item 66**

**Report of the Human Rights Council**

**Report of the Human Rights Council (A/78/53 and A/78/53/Add.1)**

**The President**: In connection with this item, I would like to recall that the General Assembly, at its 2nd plenary meeting, on 8 September 2023, decided to consider agenda item 66 in plenary meeting and in the Third Committee, pursuant to resolution 65/281 of 17 June 2011.

Let me welcome and commend Ambassador Václav Bálek for his unswerving leadership as President of the Human Rights Council during this uncertain time. It is a time when climate change, poverty and food insecurity continue to wrench our societies, when a staggering 108.4 million people worldwide have been forcibly displaced by persecution, conflict and violence and when — while we were already tested enough by the wars in Ukraine, Africa and the worrisome situation in Haiti — the gravest escalation of violence in the Middle East in decades has continued to play out before our eyes, and this time in a much more dramatic and visceral fashion.

Against that backdrop, the Council's role in promoting and protecting human rights and addressing violations, wherever and whenever they occur, has never been more critical or more consequential. The presentation of the Council's annual report (A/78/53 and A/78/53/Add.1) this morning offers a prime opportunity to reflect on how to strengthen coordination and coherence in the work of the General Assembly and the Council. The question is how we leverage the comparative advantages of the two bodies to maximize our collective influence and impact. The Human Rights Council has proved its relevance time and again by reviewing the human rights situations in all Member States, addressing violations in a timely and substantive manner, bringing a plurality of voices into its deliberations and reinforcing the universality of human rights. The increasing workload of the Council is a clear testament to its importance. It is also a sign of its innovation. The Council's focus on capacity-building and regional cooperation in the field of human rights has been crucial to effecting change on the ground. In that context, I welcome its recent resolution 54/33, on the establishment of a regional office of the United Nations High Commissioner for Human Rights for the Caribbean Community.

This year we are preparing to mark the seventy-fifth anniversary of the historic adoption of the Universal Declaration of Human Rights. That landmark document provides the very foundations of international human rights law. As we look forward to that significant occasion, let us recall that the 30 articles of the Declaration transcend borders and cultures, offering us the most powerful tools that we have for preventing conflict, sustaining peace and advancing development that respects and protects women, children, Indigenous peoples, persons with disabilities and people of

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African descent, as well as other vulnerable groups in our communities.

Likewise, the freedom to engage with the United Nations is in itself a basic exercise of human rights. It must be respected and protected. I therefore condemn any acts of reprisal or intimidation against those cooperating, or seeking to cooperate, with the Organization in defence of those fundamental freedoms. The need to prevent human rights violations is more vital than ever. Let us recommit to the goals of the Declaration. Let us act now to end conflict, respect the Charter and abide by international law. Let us infuse today's debate with the critical thinking we need to close the gaps between our aspirations and our reality.

In accordance with resolution 65/281, I now give the floor to the President of the Human Rights Council.

**Mr. Bálek** (Czechia), President, Human Rights Council: I am honoured to present to the General Assembly the annual report of the Human Rights Council (A/78/53 and A/78/53/Add.1).

Seventeen years ago, the Assembly acknowledged that the three pillars of the United Nations are interlinked and mutually reinforcing, reaffirmed that all human rights are universal, indivisible, interrelated, interdependent and mutually reinforcing and established the Human Rights Council. Since then, a total of 123 United Nations Member States have served as members of the Council. Let me congratulate the 14 States that were recently elected or re-elected as members for the term from 2024 to 2026. That includes the Dominican Republic for the first time.

This year, engagement with the Council continued to increase, and the programme of work continued to grow. We heard a record number of addresses from dignitaries during the high-level segment of the fifty-second session and held more than 14 weeks of regular-session meetings — the most since the Council's creation. That demonstrates the importance that States and civil society attach to the Council's ability to address the ever-increasing number of human rights issues around the world. In line with resolution 65/281, the annual report of the Human Rights Council, with its addendum, covers the period from 8 October 2022 to 13 October 2023. It contains the Council's resolutions, decisions and President's statements adopted at sessions in 2023, as well as two special sessions and the organizational session held in the final quarter of 2022.

During the reporting period, the Council held 117 interactive dialogues, 19 panels, 18 general debates, one urgent debate and two special sessions. It considered more than 230 reports by mandate holders, the Secretary-General and the United Nations High Commissioner for Human Rights, and in relation to the Universal Periodic Review. And it adopted a total of 154 resolutions, decisions and President's statements. Let me stress that 76 per cent of them, amounting to a total of 117 texts, were adopted without a vote, demonstrating that Member States are able to agree on the majority of human rights issues covered by the Council.

In its resolution 60/251, the General Assembly mandated the Council to "respond promptly to human rights emergencies". And during the reporting period the Council continued to deliver. On 24 November 2022, the Council held its thirty-fifth special session, on the deteriorating situation of human rights in the Islamic Republic of Iran, especially with respect to women and children. At the conclusion of the special session, the Council decided to establish a new fact-finding mission. The fact-finding mission presented its first oral update to the Council at the Council's fifty-third session in July. It reported that the overall human rights situation in the country risks deteriorating further if no response is made to the concerns raised to date about alleged human rights violations. The mission's first full report will be presented to the Council in March 2024. Moreover, on 11 May 2023, within a month of the outbreak of hostilities in the Sudan, the Council held its thirty-sixth special session, on the human rights impact of the ongoing conflict in the Sudan. At the end of the fifty-fourth session, the Council established a new fact-finding mission on the Sudan, mandated to investigate and establish the facts, circumstances and root causes of those alleged human rights violations and abuses. I have initiated the selection process for the members of the new mission and hope to make the appointments shortly.

The Council also established new mandates this year under its technical cooperation and capacity-building agenda. For example, in April it adopted resolution 52/39, which requested the Office of the High Commissioner for Human Rights to provide Haiti with technical assistance and support for its judiciary, security forces and prison administration. At the Council's request, the High Commissioner appointed an independent human rights expert on Haiti to monitor the development of the human rights situation there. The expert has already undertaken a country visit and

participated in an interactive dialogue with the Council during its fifty-fourth session.

During its fifty-third session, in July, the Council requested the Office of the High Commissioner for Human Rights to assist Colombia with the implementation of the recommendations made by its national Commission for the Clarification of Truth, Coexistence and Non-Repetition. Then, at the Council's request, the High Commissioner appointed an international human rights expert tasked with identifying and verifying the obstacles to the implementation of Colombia's 2016 Final Agreement for Ending the Conflict and Building a Stable and Lasting Peace. The expert undertook a country visit in September. And a few weeks ago, the Council adopted resolution 54/30, through which it requested the Office of the High Commissioner for Human Rights to provide technical assistance and capacity-building to national civilian authorities in penitentiary, security and justice matters in Honduras, in order to improve the situation of human rights there. Also during the fifty-fourth session, the Council welcomed the willingness of the High Commissioner for Human Rights to engage with the Caribbean Community in order to conclude an agreement with the Bahamas regarding the establishment of a regional office of the Office of the High Commissioner in that country. The purpose of the office would be to undertake technical assistance and capacity-building activities and support efforts to promote, protect and fulfil human rights within the region by the Governments of the Caribbean Community.

For those four initiatives, the countries concerned worked with their peers to identify human rights issues and seek targeted international assistance from the Human Rights Council and the Office of the High Commissioner. It is a blueprint for cooperation and an encouraging demonstration of the Council's ability to effectively deliver on its mandate.

Some of the country-specific resolutions adopted by the Council this year included recommendations to the General Assembly. For example, in its resolution 52/30, on the situation of human rights in the Syrian Arab Republic, the Council reaffirmed its recommendation that the General Assembly submit the reports of the Independent International Commission of Inquiry on the Syrian Arab Republic to the Security Council for appropriate action. The Council also recommended continuing the Commission's briefings to members of the Security Council and the General Assembly. Similarly, in its resolution 52/31, on the situation of human rights in Myanmar, the Council recommended that the General Assembly submit the reports of the High Commissioner for Human Rights and the Special Rapporteur on the situation of human rights in Myanmar to the relevant United Nations bodies, including the Security Council, for their consideration and appropriate action, taking into account the relevant conclusions and recommendations in the reports.

This year, the Human Rights Council has continued its significant work in advancing international human rights law by adopting several new resolutions that address a wide range of human rights issues. For example, during its fifty-third session, the Council held an urgent debate to discuss the alarming rise in premeditated and public acts of religious hatred as manifested by the recurring desecration of the Holy Qur'an in some European and other countries. Following the debate, the Council adopted a new resolution (resolution 53/1) on countering religious hatred constituting incitement to discrimination, hostility or violence. A few weeks ago, at the conclusion of its fifty-fourth session, the Council adopted two new thematic resolutions — resolution 54/6, on the centrality of care and support from a human rights perspective, and resolution 54/5, on ensuring quality education for peace and tolerance for every child. The Council also established a new working group on the rights of peasants and other people working in rural areas. Additionally, the Council adopted resolution 54/18, on the right to development, which will submit to the General Assembly a draft international covenant on the right to development for its consideration, negotiation and subsequent adoption.

The Council's work to promote and protect human rights requires a precise understanding of human rights and how they apply to particular domestic contexts. The thematic special procedures of the Human Rights Council provide this through their country visits, annual reports and communications. As of today, 129 Member States and 1 non-member observer State have extended a standing invitation to thematic special procedures. I would like to take this opportunity to call on all States to cooperate with the special procedures and encourage States that have not yet done so to consider extending a standing invitation to them.

Another integral part of the Council's work is the Universal Periodic Review, widely known as the UPR. A quarter of all States have already undergone their

fourth peer review of their human rights obligations and commitments, and another 14 States will be reviewed over the next two weeks. With a strong commitment to the equal treatment of all States, the Universal Periodic Review is valued as a process to initiate constructive dialogue and explore avenues for technical cooperation and partnerships between States and other stakeholders, including civil society.

During a high-level panel discussion in February, the Council reflected on the achievements of the Voluntary Fund for Participation in the Universal Periodic Review and the Voluntary Fund for Financial and Technical Assistance in the Implementation of the Universal Periodic Review, marking their fifteenth anniversary. Those Funds support the participation of developing countries, particularly least developed countries and small island developing States, and the implementation of recommendations. I am also pleased to share that the Voluntary Technical Assistance Trust Fund to support the participation of least developed countries and small island developing States in the work of the Council was able to facilitate the participation of 41 beneficiary delegates and fellows in the Council's regular sessions in 2023. The programme not only brings new voices to the Council, but it also helps to build human rights capacity within developing States. I thank the donor countries and hope to see more eligible countries use the Fund.

Representatives of civil society and human rights defenders bring to the Council the voices and experiences of individuals and groups facing human rights challenges around the world. In 2023, the Council heard more than 2,400 oral interventions by non-governmental organizations (NGOs). On average, more than 350 NGOs participated in each regular session of the Council. The high level of participation by NGOs in its work not only makes the Council unique among United Nations bodies but gives it credibility among the people it serves. It remains crucial that the Council is a safe space for civil society, one in which they can participate without fear of reprisal. Throughout the year, I have regularly encouraged all States to take the necessary measures to prevent acts of intimidation or reprisal against NGOs cooperating with the Human Rights Council. During my presidency, I have also addressed and followed up on the allegations of acts of reprisal or intimidation that have been brought to my attention. I was pleased to see that the Council's biennial resolution on reprisals (resolution 54/24) was once again adopted without a vote at its fifty-fourth session.

As we mark 75 years since the adoption of the Universal Declaration of Human Rights, the world's human rights challenges remain vast, and more and more often we are witnessing the clear linkages between human rights, development and peace and security. In order for us to effectively tackle the myriad challenges that we are all facing today, we must commit to taking a holistic approach if we are to achieve the mandate entrusted to us. That means working together with all relevant actors and bodies to achieve fairer, more just and more peaceful societies. All of us sitting in this Hall are well aware that there can be no peace without human rights and development, and human rights and development suffer greatly during times of violence and conflict. The United Nations has all the tools to address the crises that we are facing today. But while it was created for that purpose, we need to use the tools in a more efficient and effective way. As I have just described in detail, the Human Rights Council is constantly producing a wealth of information and recommendations concerning human rights issues and situations around the world. It is an invaluable resource that should be utilized by other bodies, regardless of which pillar of the United Nations Organization they fall under. Only by sharing information, working together and addressing challenges holistically will we be able to make real progress in fulfilling our great Organization's mandate.

Let me conclude by thanking the General Assembly for its explicit support for the Human Rights Council.

**The President**: I would like to thank the President of the Human Rights Council for his report.

**Mr. Pérez Ayestarán** (Bolivarian Republic of Venezuela) (*spoke in Spanish*): The Bolivarian Republic of Venezuela has the honour to speak on behalf of the Group of Friends in Defence of the Charter of the United Nations. We have taken note of the report on the work of the Human Rights Council (A/78/53 and A/78/53/Add.1), submitted by its President to the General Assembly pursuant to resolution 60/251.

Our Group of Friends considers the Charter of the United Nations to be a milestone and a true act of faith in the best of humankind. Its purposes and principles remain timeless and represent the foundation of an international system that seeks to establish a world in which human rights, sustainable development and peace

and security are a reality for all our peoples. Full respect for and adherence to those principles, which form the basis of modern international law, represent a path to the achievement of a more peaceful and prosperous world and a truly just and equitable world order. In that context, we emphasize that it is human rights that are the broadest and most integral expression of such noble aspirations. The Universal Declaration of Human Rights and our universal system of human rights are therefore historic achievements of humankind that we have an ethical and political duty not only to preserve but to strengthen.

The States members of our Group of Friends attach great importance to the promotion and protection of all human rights, individual and collective, without distinction of level or category. They also believe that their promotion and protection are strengthened on a basis of dialogue and cooperation, in accordance with the principles of impartiality, objectivity, transparency, non-selectivity, non-politicization and non-confrontation, and taking into account respect for the principle of sovereignty and for all obligations arising from the Charter, including the obligation to refrain from intervening in matters that are essentially within the domestic jurisdiction of any State — all of it within a framework of equality and mutual respect among States.

In that regard, we see the Human Rights Council as an institutional effort of the first order to effectively bring the United Nations system closer to sustainable, advanced and balanced solutions that are in line with the context of today's world in order to address human rights issues, giving priority to dialogue and cooperation with States and working unwaveringly to prevent its use by external actors whose only aim is advancing dubious interests. In that respect, we would like to remind the Assembly that the Universal Periodic Review is the most appropriate mechanism for constructive discussions on human rights situations at the global level. We also believe it is essential for the Human Rights Council to continually review and update its own mechanisms and working methods in line with the relevant provisions of its resolution 5/1, entitled "Institution-building of the Human Rights Council", in order to preserve the ideals that inspired its establishment.

We would like to take this opportunity to reiterate our categorical rejection of double standards on human rights, bearing in mind that such an approach is an obstacle to achieving a harmonious environment and progress in this area. We are also seriously concerned about the continued and growing proliferation of mechanisms and procedures that purport to make supposedly impartial assessments of the human rights situation in various States, and that in most cases not only lack the proper consent and participation of the State concerned, but also base their reports on secondary, tertiary or other sources, which ultimately renders such documents mere propaganda pamphlets, while granting them a spurious legitimacy simply because they were issued by bodies of our Organization. In that context we cannot overemphasize the importance of preventing the name of the United Nations and the spirit that should guide its work from being abused in order to advance objectives contrary to the purposes and principles enshrined in its own founding Charter.

Furthermore, our Group of Friends would like to reiterate its firm condemnation of the sustained and increasing application of unilateral coercive measures aimed at advancing intervention and destabilization agendas that are both political and economic in nature and that have a dramatic impact on the full enjoyment of human rights of more than a third of humankind, preventing or hindering access, for example, to food, medicines, medical treatment and equipment, financial services, education, technological advances and energy sources, among other essential goods and services, while offering a supposed legal cover for the confiscation of sovereign resources that can be deposited within the national banking systems of nations that apply such criminal measures. These are cruel and inhumane attacks that are seriously affecting the policies, capacities and programmes of the Governments of more than 30 countries around the world, including in relation to the implementation of the 2030 Agenda for Sustainable Development and the achievement of the Sustainable Development Goals — a reality that, moreover, mainly affects people in highly vulnerable situations and is contrary to our collective promise to leave no person or country behind.

In that regard, we also stress that it is immoral and completely contradictory for some Governments to present themselves as champions and supposed guardians, defenders or promoters of human rights when at the same time, with their deliberate and systematic policies, particularly the illegal application of unilateral coercive measures, they are committing mass violations and even crimes against humanity against the human rights of billions of people around

the world. I want to make it clear that those actions are totally inconsistent with each other.

The States members of the Group of Friends reiterate their conviction that there can be no alternative to dialogue, cooperation, engagement and national ownership in every process that has as its real objective the strengthening of human rights, at both the national and international levels, while reaffirming their firm determination to continue working actively and constructively to improve the effectiveness and scope of the universal system of human rights, including the institutional strengthening of the Human Rights Council, in order to preserve, promote and defend the pre-eminence and validity of the Charter of the United Nations and both the letter and the spirit of one of its main pillars in particular.

We also welcome the adoption by the Human Rights Council, within the framework of its fifty-fourth session, of resolution 54/18, its most recent resolution on the right to development, by which the Council decided to submit to the General Assembly a draft international covenant on the right to development for its consideration, negotiation and subsequent adoption. We cannot emphasize too much that the adoption of a legally binding international instrument on the right to development, within the framework of the United Nations, will constitute a historic milestone for humankind that we are fully prepared to actively and constructively contribute to. We hope that every Member State of our Organization will join that collective effort in order to realize that objective without further delay, after nearly 40 years of waiting patiently for the covenant to arrive.

Against that backdrop, we insist that it is essential to achieve a normative and institutional context in which we do not see practices that politicize human rights reproduced. Among other things, we are confident that it will be key to preventing the Human Rights Council from being condemned to the same fate as its predecessor. We therefore conclude by reaffirming our firm determination and willingness to continue contributing to an approach that promotes multilateralism and is complemented and replicated in a transparent manner by other United Nations bodies. We stress that only through measures that foster mutual and genuine trust, despite differences that may exist, will it be possible to advance the promotion, protection and full guarantee of all human rights and support a more just, democratic and inclusive international and global society, with full guarantees for the ideals that inspired the establishment of the United Nations and that today all our peoples are demanding to share in equally as never before.

**The President**: I now give the floor to the representative of the European Union, in its capacity as observer.

**Ms. Clifford** (European Union): I have the honour to deliver this statement on behalf of the European Union (EU) and its member States. The candidate countries North Macedonia, Montenegro, Albania, Ukraine, the Republic of Moldova and Bosnia and Herzegovina align themselves with this statement.

The European Union would like to thank the President of the Human Rights Council, Ambassador Václav Bálek, for presenting the Council's annual report (A/78/53 and A/78/53/Add.1) to the General Assembly. We commend his leadership and dedication in steering the work of the Council this year as we commemorate the seventy-fifth anniversary of the Universal Declaration of Human Rights, the thirtieth anniversary of the Vienna Declaration and Programme of Action and the twenty-fifth anniversary of the Declaration on Human Rights Defenders.

The EU has been a strong supporter of the Human Rights Council since its establishment and remains so. As the only United Nations body that is purely devoted to the promotion and protection of all human rights, the Council has greatly contributed to strengthening the United Nations human rights pillar. The system of special procedures, the Universal Periodic Review and the establishment of investigation, accountability and other mechanisms has significantly contributed to the promotion and protection of human rights worldwide. We know it has been an exceptionally busy year in the Human Rights Council, as the world is grappling with new and expanding wars, conflicts, military coups and repressions, which, together with growing poverty, food crises and the effects of climate change, are posing serious challenges to the realization of the Sustainable Development Goals and the attainment of human rights for all.

The EU firmly believes that all human rights are equally important, whether civil, political, economic, social or cultural. This year the EU welcomed the Human Rights Council's adoption of several thematic resolutions, including resolution 52/16, on the right to food, resolution 52/10, on adequate housing, and

resolution 52/23, on the right to a clean, healthy and sustainable environment. We supported resolution 53/3, on advancing the United Nations guiding principles on business and human rights, and joined the consensus on resolution 53/6, on human rights and climate change. We also welcomed the renewal of the mandate of the Special Rapporteur on the right to education, with a view to ensuring access to quality education without discrimination all over the world. Racism, racial discrimination, xenophobia and related intolerance remain an affront to human dignity. We therefore supported both the renewal of the mandate of the Special Rapporteur on racism and the International Working Group on the Durban Declaration and Programme of Action. We led the work on resolution 52/6, on freedom of religion or belief, and supported resolution 52/9, on freedom of opinion and expression, as those are fundamental rights and essential to an open and democratic society.

We continued to actively promote gender equality and the empowerment of women and girls throughout the work of the Council. We were pleased to partner again with the Group of Latin American and Caribbean States on resolution 52/26, on the sale and sexual exploitation of children, which renewed and strengthened the mandate of the Special Rapporteur. The EU also underlined the importance of resolution 54/16, on maternal mortality and morbidity and human rights, and supported resolution 52/7, on the absolute prohibition of torture and ill-treatment. In line with our principled opposition to capital punishment, we supported resolution 54/35, on the question of the death penalty.

The EU continues to defend and promote human rights in our own countries and around the world. We recognize that no country is perfect and that we all have work to do. For our part, we are open to dialogue and constructive criticism and to hearing and learning from others about how we can do things better. That includes cooperating with the United Nations human rights mechanisms. All 27 EU member States have issued a standing invitation to all special procedures, and the EU institutions have received all their visits upon their request. We urge other States to do the same. Nor will the EU turn a blind eye to serious human rights violations and abuses taking place in other parts of the world. Despite what we hear from many States, that is not interfering in internal affairs or violating sovereignty but is rather our collective moral and legal obligation, as set out in the Charter of the United Nations, the Universal Declaration of Human Rights and countless other human rights treaties. We therefore welcome the attention and response by the Council over the past year to situations in which attention to human rights violations is urgently needed.

Last month the EU spared no effort to extend the mandate of the Special Rapporteur on the situation of human rights in the Russian Federation — where crackdowns on civil society, human rights defenders, independent media and political opposition have reached new levels since the start of Russia's unprovoked and unjustified war of aggression against Ukraine. We also supported resolution S-34/1, on the human rights situation in Ukraine resulting from Russia's war of aggression, including the renewal of the mandate of the Independent International Commission of Inquiry on Ukraine. And the Council addressed the deteriorating human rights situation in Belarus, where arbitrary detentions have reached an unprecedented scale, and we supported the renewal of the mandates to continue examining human rights violations there.

We welcomed the adoption by consensus of resolution 54/1, led by the EU, to renew the mandate of the Special Rapporteur on the situation of human rights in Afghanistan — a country that has spiralled downwards even further in terms of human rights. The EU firmly supported the renewed mandate of the Special Rapporteur on the situation of human rights in Iran, and we continue to urge the Iranian authorities to cooperate with him and the Independent International Fact-Finding Mission on the Islamic Republic of Iran and to facilitate their access to the country.

We presented resolution 54/20, on the human rights situation in Burundi, expressed our deep concern about the most recent findings of the International Commission of Human Rights Experts on Ethiopia and stressed the need for credible transitional justice and accountability processes. We also gave full support to the decision to establish an independent international fact-finding mission for the Sudan to investigate violations of human rights and international humanitarian law since the conflict erupted there in April this year.

Civil society plays a crucial role in the work of the Council. We are concerned about the global shrinking of civic space and the increasing use of legislation to restrict civil society space. In this context, the EU welcomed resolution 53/13, on civil society space, in which the Council urged States to ensure that civil society can operate freely. The ability of individuals and groups to

engage with the Council and its mechanisms without fear of reprisal is vital to the work of these mechanisms. We strongly condemn any form of reprisal and gave our full support to resolution 54/24, on reprisals, and to the renewal of the mandate of the Special Rapporteur on the situation of human rights defenders.

Last month the General Assembly elected new members to the Human Rights Council (see A/78/PV.17). Serving as a Council member entails important responsibilities. We congratulate the new members but also want to remind them to give due attention to the human rights situation in their own countries and to fully cooperate with the Council's mechanisms. No country has a perfect human rights record, but we particularly expect the newly elected members to engage in the work of the Human Rights Council in a spirit of self-reflection, with a view to improving their own human rights situations and addressing all human rights concerns that come before the Council on their merits.

Let me conclude by reiterating the EU's continued unwavering support for the work of the Council and wishing its President the best of luck in the year to come.

**Mr. Valtýsson** (Iceland): I have the honour to deliver this statement on behalf of the Nordic countries — Denmark, Finland, Norway, Sweden and my own country, Iceland.

We thank the President of the Human Rights Council for his presentation of the report of the Council (A/78/53 and A/78/53/Add.1), which invites us to reflect on its functioning and work.

This year we mark the seventy-fifth anniversary of the adoption of the Universal Declaration of Human Rights, which proclaims that all of us are born free and equal in dignity and rights, no matter our identity, beliefs or circumstances. This milestone document is still a guiding light for our work today. Respecting and promoting universal human rights is a core concern for the Nordic countries. The Human Rights Council provides an important platform for conversations on respect for human rights and fundamental freedoms, diversity and difference — discussions that affect everyone, everywhere.

Unfortunately, we are seeing challenges to many of the human rights we thought had been secured and accepted. We are witnessing an increase in hatred and intolerance, violent nationalism, racism and homophobia, transphobia and biphobia. We are also seeing pushback on democracy and media freedom, as well as on the gains made in the areas of gender equality and sexual and reproductive health and rights. We must reverse and fight such trends and work together to secure the universal human rights of all people. We must stand up for democracy, human rights and the rule of law and defend the freedoms of opinion and expression, assembly and association. In that regard, the Human Rights Council has a crucial role to play. The Nordic countries will continue to actively engage with the Council's core mandate of advancing the promotion and protection of human rights around the globe and addressing human rights violations and abuses. As strong supporters of the Council's work, the Nordic countries emphasize the importance of engaging in that work. Finland has served on the Council since early 2022, and my country, Iceland, has decided to seek a seat for the 2025–2027 term as a Nordic candidate at the next elections, in the fall of 2024.

As we reflect on the Human Rights Council's work over the past year, we see that it has adopted some important resolutions, including on the human rights situations in Russia (resolution 54/23), Afghanistan (resolution 54/1), Belarus (resolution 53/19), Iran (resolution 52/27) and the Sudan (resolution 54/2). Furthermore, important resolutions on violence against women and girls (resolution 53/27) and preventable maternal mortality and morbidity (resolution 54/16) were adopted. It is important to keep in mind the strengths of the Human Rights Council. Our focus should be on what works well, but at the same time we should find mutual ground on how we can further improve and strengthen the work of the Council. The Nordic countries will continue to engage with countries from every region of the world in an inclusive manner, recognizing the critical importance of respectful and genuine dialogue for a more efficient and effective Council. That is an important point. Member States in the Human Rights Council do not have to be perfect. Indeed, none of us are. But we can all do better, and we should all aim to do so. In that regard, the Nordic countries will continue supporting the United Nations human rights system and its work in assisting countries in furthering human rights at home. We should not shy away from dialogue or from calling out human rights violations and abuses, regardless of where they take place or who is committing them.

We believe that human rights express the fundamental purpose of the United Nations. Advancing the dignity and equality of all human beings and

leaving no one behind must be our goal today and for our future. They represent the only way we can attain peace, security and sustainable development for all societies and accelerate the implementation of the 2030 Agenda for Sustainable Development. The President of the Council can continue to count on the support and commitment of the Nordic countries to the work of the Human Rights Council.

**Ms. Chan Valverde** (Costa Rica) (*spoke in Spanish*): Costa Rica thanks the President of the Human Rights Council, Ambassador Václav Bálek, for his presence here today and for his statement to the General Assembly, and reiterates its support for his important work. We want to reaffirm my country's historic commitment to universal respect for and observance of human rights and fundamental freedoms, without distinction of any kind, and Costa Rica's full support for the mandate of the Human Rights Council.

As human rights are a mandatory responsibility for all Member States, stipulated in the Charter of the United Nations, the Human Rights Council is the principal body not just for articulating one of its three indisputable pillars but also for bringing a human rights focus to the work of the entire system. As a member of the Council for the 2023–2025 term, Costa Rica has continued to participate actively in the Council's work at its headquarters in Geneva. We have done that in our understanding of our solemn and unavoidable responsibility to uphold the highest standards in the promotion and protection of human rights, pursuant to resolution 60/251. Today that responsibility is more crucial than ever, considering the global challenges and human rights violations in every corner of the world, including in the context of the triple global crisis of migration, progress in digital technology, artificial intelligence and automation, along with the proliferation of conflicts and an arms race that is incompatible with human rights and human security.

The reality that millions of people face daily does not recognize the bodies, mechanisms or instruments that make up the United Nations human rights system. On the contrary, in order to change that reality, we need to rally the efforts of all parties. In that regard, it is of utmost importance to strengthen synergies among the General Assembly, the Human Rights Council and other bodies in terms of substantive results, efficiency and complementarities so that we can improve national capacities, early warnings and other compliance, monitoring and follow-up tools to ensure the fulfilment of obligations. Costa Rica reiterates the call made in the Council to promote and contribute to greater cooperation and rationalization among mandate holders and special procedures, while strengthening their complementarities and coordination with other United Nations entities inside and outside of Geneva.

Allow me to underscore the following four aspects that we believe were of particular importance at the three 2023 sessions.

First, we welcome the adoption by consensus of Human Rights Council resolution 52/23 on the human right to a clean, healthy and sustainable environment, following its proclamation as a universal right by the General Assembly (see resolution 76/300). As the United Nations High Commissioner for Human Rights has said, the planetary crisis is the defining struggle of our generation. The resolution and general comment no. 26 (2023) of the Committee on the Rights of the Child, of August, which recognizes it as an autonomous right, represent steps in the right direction.

Secondly, we acknowledge that human rights, democracy and the rule of law are intrinsically linked. One cannot be achieved without the other. That is why Costa Rica endorsed a joint statement on democracy at the fifty-third session, which urges the Council to increase its leadership role in strengthening democracy and the rule of law throughout the world. We also welcome the new vision of the Secretary-General for the rule of law, in particular the unwavering commitment to ensuring human rights and people-centred justice and to prosecuting impunity, in particular for instances of genocide, war crimes, crimes against humanity and violations of international humanitarian law. We call on the Council and its mechanisms to integrate that vision in their work and to implement its recommendations.

*Mr. Niang (Senegal), Vice-President, took the Chair.*

Thirdly, Costa Rica appreciates the support for the Council's resolution on the World Programme for Human Rights Education (resolution 54/7), adopted at its most recent session, which reaffirms the Council's mandate to promote education and training in the area of human rights. We also optimistically view the preparation of the action plan for the fifth phase of the Programme in 2029 as a valuable opportunity to strengthen its complementarity, in addition to other efforts, including the work of UNESCO and within the framework of the 2030 Agenda for Sustainable Development.

Fourthly, Costa Rica has acknowledged since 1882 that human life is inviolable, thereby becoming the third country to abolish the death penalty, which can never be used as a tool to provide justice — neither for the victims nor for the offenders. We therefore support the adoption of Human Rights Council resolution 54/35 and reaffirm our willingness to work constructively with all Member States towards progressively eliminating the application of the death penalty and not delaying or preventing its abolition.

In conclusion, Costa Rica will celebrate the seventy-fifth anniversary of the Universal Declaration of Human Rights and the thirtieth anniversary of the Vienna Declaration and Programme of Action, and has undertaken commitments in response to the call of United Nations High Commissioner. Costa Ricans are committed to commemorating this event by translating the intrinsic value of human dignity into ideas and action, as a beacon to guide present and future generations towards a better life.

**Mrs. Chanda** (Switzerland) (*spoke in French*): Switzerland thanks the President of the Human Rights Council for his statement. This dialogue, which strengthens the link between Geneva and New York, is also important for Switzerland, as the host country of the Human Rights Council.

This year, which marks the seventy-fifth anniversary of the Universal Declaration of Human Rights, provides a unique opportunity to reaffirm the global consensus enshrined in the Declaration and therefore represents a key moment for unifying the international community and building trust. Respect for all human rights is the sole foundation for sustainable development and peace and for egalitarian societies. All States are therefore called upon to ratify and implement the International Covenant on Civil and Political Rights, the International Covenant on Economic, Social and Cultural Rights and other main human rights instruments.

All human beings are born free and equal in dignity and rights. The rights of women and girls today are increasingly under threat, and their fundamental freedoms are too often called into question. We are also concerned about the difficult thematic conversations in multilateral forums aimed at upholding the norms agreed at the Fourth World Conference on Women, held in Beijing, and since then. Furthermore, we stress the importance of guaranteeing the full, equal, meaningful and safe participation of women to ensure their right to be heard and our societies' capacity to respond to the crises facing our world. As an elected member of the Security Council and co-Chair of the Informal Expert Group on Women and Peace and Security, Switzerland continues to promote the implementation of that agenda in all aspects of the Security Council's work.

Switzerland is deeply concerned about the increasing number of restrictions on the right to freedom of expression and freedom of the press throughout the world. Silencing voices, including journalists and professional members of the media, has a corrosive effect on society as a whole. In that regard, Switzerland condemns all restrictions on the Internet, free and independent media and telecommunications. Switzerland would also like to underscore the vital role of civil society, including human rights defenders, and its contribution to the work and credibility of the United Nations. In that regard, Switzerland reaffirms that all acts of intimidation and reprisal are unacceptable. We thank the President of the Human Rights Council for his responsiveness vis-à-vis acts of reprisal in the context of the work of the Human Rights Council.

Switzerland attaches particular importance to the Human Rights Council because of its vocation to promote and protect all human rights throughout the world. The Human Rights Council has various mechanisms and subsidiary bodies to achieve that goal and to respond to specific situations involving human rights violations and abuses and violations of international humanitarian law. We call on all States to cooperate with the Human Rights Council and its mechanisms.

Switzerland is proud to have carried out its fourth universal periodic review this year. While recognizing the importance of the universal periodic review, we must acknowledge that it is not the most appropriate mechanism for dealing with gross and massive violations of human rights.

Switzerland has been happy to contribute, in cooperation with other States, to the work of the Human Rights Council, with the adoption of four thematic resolutions, on the question of the death penalty (resolution 54/35), drug policies and human rights (resolution 52/24), transitional justice (51/23) and the right to a clean, healthy and sustainable environment (resolution 52/23), which was acknowledged by the General Assembly in 2022 at the initiative of Costa Rica, Maldives, Morocco, Slovenia and my own country, Switzerland (resolution 76/300). Furthermore, Switzerland continues to prioritize the strengthening of United Nations prevention capacities. As an elected

member of the Security Council, we therefore advocate for better consideration of indicators of human rights violations for the early warning of conflicts. In that regard, we welcome the fact that the policy brief on the New Agenda for Peace also stresses the importance of human rights, including for conflict prevention. In particular, it encourages Member States to place human rights at the heart of national prevention strategies.

We acknowledge all the efforts of the President of the Human Rights Council to ensure that the Council is able to continue to work in a hybrid format. We hope that that will be perpetuated. Such arrangements are working tools worthy of a twenty-first century Human Rights Council that is connected and inclusive. He also has our full support for the convening of informal human rights briefings with various entities of the system, particularly those based in New York. Those informal exchanges can help to strengthen ties between Geneva and New York.

**Mr. Pilipenko** (Belarus) (*spoke in Russian*): The Republic of Belarus joins the statement made on behalf of the Group of Friends in Defence of the Charter of the United Nations.

Within the United Nations system, there is probably no topic that is as actively covered and promoted as human rights. We are compelled to note that, over time, this topic has not evolved, but rather mutated into something unreasonable, inadequate and far from the ideals that generations have imbued into the concept through conventions, declarations and pacts. We emphasize that we are talking about ideals. The approaches enshrined in the founding international documents represent a guide and a vector for the development of all countries for an ideal picture of the world, to which, unfortunately, no country has yet lived up. All States, including Belarus, must take the necessary measures to achieve such ideals, taking national specifics into account. That is why Belarus rejects the Human Rights Council being used to impose modalities for the universalization of approaches to expanding rights and freedoms. It is up to national Governments, not international institutions, to define and ensure human rights in sovereign States, based on their culture, their traditions, the state of their nation-building and a number of other factors.

We agree with the fact that human rights are the cornerstone, and we believe that human rights should serve the interests of sustainable development for both the individual and society as a whole. But Belarus will never agree with the fact that some States can dictate to others how, when and what rights are to be developed and protected, which the Human Rights Council has now often begun to do.

We are alarmed by the increasingly blatant attempts to turn the Human Rights Council into a closed club of States that arrogate to themselves the role of judge or police in human rights matters under the United Nations auspices. That is a dead end, particularly when it is understood that the standards for joining the club are determined by the guardians and gatekeepers, based on their own geopolitical considerations. Human rights need to be desacralized.

It is time to stop using human rights as a weapon and to return to the format of cooperation in order to mutually enrich the exchange of experiences. That work must begin with the Human Rights Council. We still believe that the members of the Council and the new United Nations High Commissioner for Human Rights will find ways to overcome the pressure from a small group of fans of the instrumentalization of human rights for political purposes and will be able to discharge its duties impartially, objectively, non-selectively and effectively. In that context, the Universal Periodic Review is an appropriate and acceptable platform for dialogue and systemic work to improve the human rights situation in all countries without exception.

For its part, Belarus will continue to cooperate with Member States and United Nations agencies on all constructive initiatives in the area of human rights. We will also continue to dispel the myth of the infallibility of certain Western States. The report entitled “The Most Resonant Cases of Human Rights Violations in Certain Countries of the World”, published by the Ministry for Foreign Affairs of Belarus, is dedicated to that topic.

A separate issue is the matter of unilateral coercive measures, which are contrary to international law. At a time when the work of the Human Rights Council is being used to justify illegal sanctions policies, aimed at full-fledged interference in the internal affairs of independent States, the Council should not ignore the extremely negative impact of such measures on human rights. Sanctions lead to a deterioration of the human rights environment both in the States against which they are applied and in the countries whose Governments actively use them.

We would once again like to recall that the financial burden on the United Nations regular budget continues

to increase due to the politicized decisions at the Human Rights Council. Support for the ever-growing number of monitoring mechanisms and mandates, which, as we have repeatedly seen, work for themselves and at times duplicate each other, has significantly increased and is nothing more than a senseless waste of resources that are badly needed in many areas of the work of the United Nations.

Belarus is guided by the need for effective cooperation on human rights, based on constructive synergies, dialogue and respect for international law. That is why the Council's report (A/78/53 and A/78/53/Add.1) on its work for 2023 is unacceptable to our country. Belarus will never agree with a document that includes discriminatory approaches to human rights, based on political situations and the destructive and selfish interests of a well-known group of States.

**Ms. Hameed** (Maldives): I wish to begin by expressing my gratitude to Ambassador Václav Bálek for his admirable work as President of the Human Rights Council and for presenting the Council's annual report (A/78/53 and A/78/53/Add.1) to the General Assembly. I would also like to convey my appreciation to Mr. Volker Türk, United Nations High Commissioner for Human Rights, and his team for their unwavering commitment to the promotion and protection of human rights.

On the eve of marking the seventy-fifth anniversary of the historic adoption of the Universal Declaration of Human Rights, the Maldives recognizes that the Human Rights Council has demonstrated remarkable strength and resilience in championing fundamental rights, universal values and international law.

Yet, as we delve into the topic of human rights today, our hearts are heavy due to the devastating situation unfolding in the Middle East. The Government of Maldives strongly condemns the ongoing Israeli military aggression in Gaza, especially the forced displacement of Palestinians without a guarantee of safety or their right to return.

The stark reality on the ground is that, out of the 2 million residents of Gaza, half of them are children, and a staggering 30 per cent of those children are under the age of 10. Sadly, it is those children who bear the brunt of immense suffering. Considering the loss of those young lives as mere collateral damage constitutes a profound violation of universally accepted ethical principles and a clear breach of the United Nations Convention on the Rights of the Child — the Convention that underscores the global consensus that the lives of innocent children must be protected at all costs anywhere, everywhere and at all times.

The death toll from the ongoing assault by Israel on Gaza has now surpassed 8,000, with the numbers continuing to increase every few minutes. We urgently reiterate the call for an immediate ceasefire, unrestricted humanitarian access to Gaza, the reversal of forced mass displacement of Palestinians and strict adherence to international humanitarian law and international human rights law. We emphasize the crucial need for robust multilateral action from the international community and the need to uphold the rules-based international order in addressing the grave violations being committed against the people of Palestine.

The Maldives firmly supports the establishment of a sovereign and independent Palestinian State, based on the pre-1967 borders, in accordance with international law and United Nations resolutions, with East Jerusalem as its capital. It is imperative that the international community come together to end the suffering and seek a just and lasting resolution to this conflict.

With that, let me shift our focus to our national context. We take pride in our active engagement with the Council since its inception in 2006. We are pleased to be a member of the Human Rights Council for the third time and honoured to hold the position of Vice-President from the Group of Asia-Pacific States. Our commitment to ensuring the credible, balanced, transparent and efficient operation of the Human Rights Council remains unwavering.

The Maldives is dedicated to promoting enhanced cooperation among Member States and United Nations human rights mechanisms, with a particular emphasis on addressing limitations and challenges. We have extended a standing invitation to the special procedures mandate holders in that regard. Our commitment extends to advocating for the active engagement of nations in special situations, especially small island developing States and least developed countries.

The Maldives has consistently recognized the severe threat that climate change poses to our nation's security, development and human rights across various platforms. We are honoured to have taken the lead in advocating for the adoption of the landmark resolution recognizing the human right to a clean, healthy and sustainable environment (resolution 76/300), just last year.

The Maldives faces harsh challenges due to climate change. Our food and water security remain under constant threat, with vital sectors such as fisheries and agriculture bearing the brunt, affecting the lives and livelihoods of countless Maldivians. However, such challenges do not deter us from our mission. We remain steadfast in our resolve, evidenced by the ambitious nationally determined contributions that we have set forth and the robust domestic measures that we are implementing. The Maldives has set an ambitious goal to achieve net-zero emissions by 2030, thereby underscoring our determination to combat climate change. That commitment is fortified by the enactment of the Climate Emergency Act of 2021, reflecting our proactive approach to addressing this urgent global crisis.

The Maldives is committed to nurturing inclusive social development, ensuring the way to a future that is fair and prosperous for all Maldivians. In that regard, inclusivity for vulnerable groups, particularly those with disabilities, continues to be a priority. In June this year, a new financial support framework for persons with disabilities was launched, resulting in a 50 per cent increase in the baseline disability allowance that the Government provides.

In our efforts to align our domestic policy with international instruments, we have also ambitiously pursued a transformative legislative agenda. Our child protection regime has been overhauled by the new Child Rights Protection Act and the Juvenile Justice Act to align with our international obligations.

We also take immense pride in the progress that we have made in promoting gender equality and the empowerment of women. In 2021, the Maldives successfully concluded the review of its sixth periodic report at the review session of the Committee on the Elimination of Discrimination against Women, reaffirming the Government's commitment to implementing and strengthening measures to end domestic and gender-based violence and to end discrimination against women and girls so as to fully meet the targets of Sustainable Development Goal 5. The amendments to the Sexual Offences Act that we brought about in 2021 are indicative of the Government's commitment in that regard.

The Maldives, with its substantial youth population, has been focusing on the empowerment of young people as a priority. In that regard, a nationwide multi-stakeholder initiative to educate and inspire young people to become socially aware, responsible citizens was successfully implemented.

The principles of human rights serve as the cornerstone of the foreign policy of the Maldives and our national development vision. We maintain our unwavering commitment to the vital mission of enhancing the Council's work and capabilities to collaborate effectively with Member States in advancing and safeguarding human rights on a global scale for a more peaceful world.

**Ms. Oehri** (Liechtenstein): We thank the President of the Human Rights Council for presenting a comprehensive and informative account of the Council's work. The Council is the United Nations central human rights body. As such, it plays a crucial role in ensuring that States respect their obligations under international human rights law and in preventing and responding to violations thereof. We wish to take this opportunity to flag some of the key aspects of the work of the Council during both the reporting period and its most recent session.

We welcome the unanimous adoption at the fifty-second session of the Council of resolution 52/31, on the situation of human rights in Myanmar, condemning both the military coup and the continued extension of the state of emergency in the strongest terms. As the current political developments in Myanmar point towards protracted authoritarianism, with severe consequences for the lives and livelihoods of the civilian population, it is important for the international community to remain seized of that matter. In that regard, we echo the call of the Human Rights Council for the continued attention of the Security Council to the situation in order to resolve the humanitarian crisis and ensure accountability for mass atrocities and human rights violations.

The holding of special sessions on Iran and the Sudan late last year proved once again that the Human Rights Council is capable of addressing human rights situations of concern in a timely manner. We commend resolution S-35/1, calling upon the Islamic Republic of Iran to end all forms of discrimination and violence against women and girls and to ensure their access to truth, justice and redress. The brutal assault leading to the death of 16-year-old student Armita Garavand is yet another tragic incident that must not go unpunished. The establishment of an independent international fact-finding mission constitutes an important and timely step in view of future legal proceedings. As we strongly

condemn any form of persecution on the basis of gender, we also deplore the rapidly deteriorating human rights situation for women and girls in neighbouring Afghanistan and the ever-increasing list of restrictions that they face in their daily lives.

The human rights situation in Ethiopia also remains an issue of grave concern. The latest report by the International Commission of Human Rights Experts on Ethiopia (A/HRC/54/55) outlines the staggering levels of violence and human rights violations, affecting several regions of the country over the past years, including mass killings, widespread, systematic sexual violence, forced displacement and large-scale arbitrary detentions. In the light of the continuing violence, we regret that Council members did not heed the calls to prolong the mandate of the Commission and its important work to promote accountability and deter further atrocity crimes.

The Human Rights Council, in turn, has lived up to our expectations when it prolonged the mandate of the Independent International Commission of Inquiry on Ukraine. In its latest report (see A/78/540), the Commission includes new evidence on the gravity of violations of international human rights law and international humanitarian law committed by the Russian authorities, including war crimes of wilful killing, torture, rape and other sexual violence. The aggression against Ukraine is not only the most brazen violation of the United Nations since the founding of the Organization, but in concrete terms it has caused a human rights catastrophe. Accountability for aggression contributes to the prevention of such violations by prosecuting the very behaviour that stands at the beginning of the causal chain — the decision to resort to the illegal use of force. In order to ensure justice and help to deter future aggression, the perpetrators of the crime of aggression must be held accountable.

Early this month, the Human Rights Council adopted resolution 54/18, which requests the General Assembly to consider a draft international covenant on the right to development. In the light of the monumental task of accelerating the implementation of the Sustainable Development Goals, it is critical for that issue to unite, rather than to further divide, the United Nations membership. Liechtenstein is committed to the promotion of sustainable development in its three dimensions — economic, social and environmental — in line with the 2030 Agenda for Sustainable Development. With that Agenda, we all have devised the most ambitious and comprehensive implementation programme for the vision enshrined in the Declaration on the Right to Development of 1986. We continue to believe that the Declaration provides appropriate and sufficient guidance to the right to development, which must be rooted not only in our common resolve to foster a more peaceful, just and prosperous world for all, but also in the universality of human rights.

In May, the Human Rights Council's Universal Periodic Review examined Liechtenstein's human rights record for the fourth time. We were particularly pleased to report on the ratification of the Council of Europe Convention on Preventing and Combating Violence against Women and Domestic Violence, the ongoing ratification process of the Convention on the Rights of Persons with Disabilities and the launch of the Financing against Slavery and Trafficking initiative.

At the same time, we also strongly valued the exchange with Member States that allows for critical observations and recommendations for further improvements. After consulting with all the relevant Government bodies, Liechtenstein was pleased to announce that it accepted 132 out of 184 — a total of 72 per cent of all recommendations of this review cycle. In doing so, we continue to uphold and promote the highest international human rights standards.

Upholding the highest standards in the promotion and protection of human rights is also an explicit requirement for Council members, as reflected in its founding resolution 60/251. For the Council to be effective and fulfil its mandate, we all must keep that requirement in mind when electing the Council's membership.

**Ms. Al-Thani** (Qatar) (*spoke in Arabic*): At the outset, I would like to thank Mr. Václav Bálek for presenting the report of the Human Rights Council (A/78/53 and A/78/53/Add.1).

The State of Qatar takes pride in its current membership in the Human Rights Council, which reflects the trust of the international community in the active and positive role played by my country in protecting and promoting human rights and related issues.

The State of Qatar reaffirms its readiness to implement the voluntary pledges and commitments that it made, including continuing to develop our national legislation and ensuring that it is consistent with

international human rights law, while supporting joint programmes and projects in the region bilaterally and multilaterally to promote and protect human rights.

The State of Qatar also works to implement all international conventions, treaties and covenants to which it is a party. We recently presented our initial report in Geneva on the International Covenant on Civil and Political Rights, in accordance with article 40 of the Covenant. That report highlighted our wide-ranging developments at the legislative and institutional levels, as well as our policies and strategies aimed at promoting and strengthening the human rights infrastructure since my country joined the Covenant in 2018.

The State of Qatar received a high rating of 100 per cent among countries in terms of submitting reports to international mechanisms, in accordance with the Office of the United Nations High Commissioner for Human Rights. My country is also preparing for our Universal Periodic Review at the Human Rights Council in November 2024. We affirm that we will continue to support the Office of the United Nations High Commissioner for Human Rights, and we reiterate the open invitation that we extended to the special procedures mandate holders of the Council. We will continue to support United Nations bodies, in particular the activities of the United Nations Human Rights Training and Documentation Centre for South-West Asia and the Arab Region, hosted by the State of Qatar, as one of the most important offices of United Nations House in the State of Qatar.

Human rights are indispensable to achieving sustainable development. Through our bilateral or multilateral development and humanitarian assistance, we seek to promote and protect human rights, especially the right to development and the right to education. The State of Qatar will continue to highlight those issues as a member of the Council.

The report of the Human Rights Council includes the resolutions adopted by the Council on the human rights situation in the occupied Palestinian territories (resolution 52/3 and 52/35). The report also addresses the ongoing negative repercussions in the Gaza Strip. Since then, the humanitarian situation in the Gaza Strip has deteriorated as a result of the Israeli attacks on innocent civilians. The State of Qatar reiterates its call on all parties to de-escalate in order to ensure a complete ceasefire, the immediate release of all prisoners, particularly civilians, guaranteed access for urgent aid to the Gaza Strip and the opening of safe corridors to allow the delivery of humanitarian assistance. My country once again condemns all forms of targeting civilians, especially women and children, and categorically rejects the policy of collective punishment and attempts to forcefully displace the brotherly Palestinian people from the Gaza Strip and compel civilians to displace or seek refuge in neighbouring countries, which is a flagrant violation of international law.

In conclusion, the State of Qatar reiterates its commitment to continuing its efforts to promote and protect human rights. We look forward to effectively contributing to the work of the Human Rights Council in the coming years.

**Mr. Akram** (Pakistan): We thank the President of the Human Rights Council for his presentation of the annual report of the Human Rights Council (A/78/53 and A/78/53/Add.1) to the General Assembly.

The Human Right Council serves to uphold one of the three pillars of the United Nations. The Council continues to make important contributions to developing human rights norms, as well as addressing situations of grave violations of human rights. My remarks today are focused on how we can improve the Council's effectiveness in fulfilling its mandate and responsibilities fully and comprehensively.

Our first and major proposition is that human rights must be promoted comprehensively and in a balanced manner with equal attention and efforts to promote both civil and political rights, as well as economic and social rights. The greatest improvements in human rights flow from ending hunger and poverty and promoting prosperity. Over the past decades, hundreds of millions of people have been lifted out of poverty. Yet, due to an unequal global economic system and, more recently, the adverse impacts of the coronavirus disease pandemic, the proliferation of conflicts and the increasing frequency and severity of climate impacts, development gains have been reversed. More than 100 million people have descended back into the ranks of the extreme poor, who now number over 850 million people. With 350 million facing hunger and destitution, 60 States are in debt crisis, and only 12 per cent of the Sustainable Development Goals (SDGs) are on track to be achieved by 2030.

The highest priority for the Human Rights Council must therefore be to promote more rapid and equitable development by seeking urgent support for developing

countries facing the triple food, fuel and finance crisis and the reform of the unequal international financial, trade and technology regimes.

We will press for the timely and faithful implementation of the commitments made at the SDG Summit and under the United Nations Framework Convention on Climate Change and other similar commitments. A key component of that endeavour to promote economic and social rights will be the adoption of the international covenant on the right to development (see Human Rights Council resolution 54/18, annex), which has been transmitted to the Assembly by the Human Rights Council for consideration and adoption.

With regard to civil and political rights and the Council's prevention agenda, there are several improvements that are required.

First, the Human Rights Council must address the massive human rights violations that take place in situations of foreign occupation and intervention. The heart-wrenching slaughter that is taking place in Gaza and in occupied Palestine is visible on our television screens today. The occupying Power has enjoyed impunity for such violations for more than 50 years. The massive violations in occupied Jammu and Kashmir are also well recorded. We await the third report of the United Nations High Commissioner for Human Rights on the situation in Jammu and Kashmir. In both instances, the occupying Powers have sought to suppress the legitimate national liberation struggles under the guise of combating terrorism. The most recent conflict in the Middle East illustrates the danger of allowing the persistence of foreign occupation.

Secondly, a much more robust effort is required to address the rise of racial hatred, religious supremacy and extreme and violent nationalism and fascism in certain parts of the world. Islamophobia is a major element of the new phenomena, manifested in the discrimination and attacks against Muslims, hijab bans, the repeated burning of the Holy Qur'an, blasphemous caricatures and the vandalization of Islamic symbols in holy sites. Such acts cannot be allowed under the cover of freedom of expression. In our eastern neighbour, the pandemic of Islamophobia poses the danger of Muslim genocide. Islamophobia should be frontally addressed by the Council under agenda item 9 and its prevention mandate. Pakistan and the States members of the Organization of Islamic Cooperation will also propose the adoption of a United Nations plan of action to comprehensively combat Islamophobia.

Thirdly, the greatest weakness of the Human Rights Council is selectivity and double standards. No special mechanisms have been created. No special sessions have been called to address human rights violations in a developed country — only in developing countries. There are double standards even among developing countries. Unfounded allegations are made against one large developing country, declared as a strategic adversary, while another large developing country, considered a strategic ally, enjoys a free pass, even though several special rapporteurs and mechanisms have repeatedly expressed serious concern about the widespread human rights violations being committed by the extremist ruling party in that country.

Finally, it seems advisable to review the vast human rights machinery. There are now 59 special procedures — 45 thematic and 14 country-specific. That is creating duplication and the inefficient use of scarce resources. A review is required to streamline the machinery. Likewise, the staffing and composition of the Office of the United Nations High Commissioner for Human Rights may also require review and reform to ensure equitable geographical representation and eliminate influences that lead to selectivity and imbalance in the work of the Office and the Human Rights Council.

Pakistan will continue to participate actively and constructively in enabling the Human Rights Council to fulfil its mandate to promote all human rights without distinction or discrimination.

**Mrs. Arab Bafrani** (Islamic Republic of Iran): My delegation would like to thank the President of the Human Rights Council (HRC), His Excellency Mr. Václav Bálek, for his statement and briefing.

My delegation feels truly obliged to commence its statement today by paying tribute to all the suffering and the plight of thousands of fellow human beings, including children, who have been brutally killed, injured or maimed during these past 25 days in occupied Gaza. Every five minutes, a Palestinian child is killed. How long will it take? Not a clue.

The Islamic Republic of Iran notes the report of the Human Rights Council (A/78/53 and A/78/53/Add.1). A review of the current report clearly indicates that the Human Rights Council, as a subsidiary body of the General Assembly, operates under the pressure of geopolitical competition, diverse interests and the conflicting approaches of various stakeholders.

Different States and groups pursue their ideas, initiatives and interests, sometimes in conflict with each other. However, what matters most is that all discussions within the Human Rights Council take place in a manner that adheres to the Charter of the United Nations principles of national sovereignty, territorial integrity and non-interference in the internal affairs of independent States.

Geopolitical rivalries should not be allowed to dominate the Human Rights Council. In accordance with paragraph 5 of the Vienna Declaration and Programme of Action, the international community must treat human rights globally in a fair and equal manner, on the same footing and with the same emphasis. In that vein, we maintain that all human rights should be equally emphasized within the Council, in particular the right to development.

We firmly hold the view that the Council should represent the voice of all States and address their concerns, while the significance of national and regional particularities and the various historical, cultural and religious backgrounds and their legal frameworks, as well as the level of development and specific challenges outside their influence, must be borne in mind in promoting and protecting human rights and dignity.

Unilateral coercive measures violate all human rights, ranging from the right to life, health, education, movement, employment, access to technology and humanitarian assistance to the right to development, among others. There is a significant proliferation of sanctions by the United States and the European Union (EU). According to the report of the Special Rapporteur on the negative impact of unilateral coercive measures on the enjoyment of human rights (see A/78/196), United States sanctions use increased by 933 per cent between 2000 and 2021. That is without counting other restrictive measures. All unilateral coercive measures should be lifted immediately and without delay.

Unfortunately, the proliferation of country-specific resolutions and mechanisms, often driven by specific groups of countries against others, is a concerning development that could seriously damage the Council's credibility. Significant amounts of time and resources are allocated to such mechanisms and resolutions, leading only to intensified political tensions within the Human Rights Council.

The process of enhancing the effectiveness and efficiency and optimizing the work of the Human Rights Council also suffers from an imbalanced and unilateral approach. In that regard, we believe that any action should be taken within the framework of its institution-building package, annexed to resolution 5/1, adopted in 2007. Any proposal or decision in that regard should not undermine the intergovernmental nature of the Council.

Regarding the establishment of the so-called independent international fact-finding mission on the Islamic Republic of Iran in November 2022, as a result of Human Rights Council resolution S-35/11, it is imperative to highlight that the Islamic Republic of Iran has already established several investigation mechanisms, including an independent and professional specialist committee in that regard. My Government will not recognize any biased mechanism established based on a double-standard approach and a politically motivated resolution, in which its failure is predicted in advance. We have the same view on the flawed nature of the politicized country-specific resolution 52/27, on the so-called situation of human rights in the Islamic Republic of Iran.

Iran is deeply concerned over the surge of hate speech and incitement to violence within EU countries against Muslims. Iran categorically rejects all the baseless allegations levelled against it, while highlighting the weaponization of human rights yet again occurring by exploiting the platform of this body by specific delegations that undermine the cause of human rights.

The Islamic Republic of Iran remains committed to advancing human rights and preserving human dignity, while continuing to cooperate with the Office of the United Nations High Commissioner for Human Rights and with the human rights mechanisms, including the Universal Periodic Review, which adheres to the principles mentioned.

It is paramount to address human rights issues in an equal and fair manner through a constructive, non-confrontational, non-selective approach. Dialogue should be the basis of all human rights, grounded in objectivity, impartiality and transparency as guiding principles.

In conclusion, the Islamic Republic of Iran calls upon all States to refrain from taking sides with any politically motivated attempts and smear campaigns by adopting an independent policy and opposing

the instrumentalization of international human rights mechanisms.

**Mr. Abesadze** (Georgia): At the outset, let me thank the President of the Human Rights Council (HRC), Ambassador Václav Bálek, for the presentation of the report of the Council (A/78/53 and A/78/53/Add.1) and express appreciation for his commendable stewardship of the HRC.

As a member of the Human Rights Council, Georgia remains firmly committed to further contributing to the comprehensive implementation of the Council's mandate in close cooperation with all stakeholders, including non-governmental organizations, for the protection and promotion of human rights for all, with a special emphasis on women and girls, children and persons with disabilities, minorities, internally displaced persons and conflict-affected people.

As illustrated by the report, during the reporting period the Human Rights Council undertook significant efforts aimed at addressing human rights situations in different parts of the world, including my own region.

Against that backdrop, the importance of resolution 52/40, on cooperation with Georgia, adopted during the fifty-second session of the HRC this year, should be underlined. Regrettably, despite numerous calls by that and all previous resolutions on the topic, the international community and the United Nations High Commissioner for Human Rights, the Russian Federation, the occupying Power, continues to prevent the Office of the United Nations High Commissioner for Human Rights and other international human rights monitoring mechanisms from entering the Russian illegally occupied Abkhazia and Tskhinvali regions of Georgia. Being mindful of the significance of a consolidated approach by the international community, Georgia plans to resubmit the resolution "Cooperation with Georgia" again during the fifty-fifth session of the HRC next year.

Let me draw the Assembly's attention to the continuously deteriorating humanitarian situation in both the Russian illegally occupied regions of Georgia, where people have to endure blatant violations of their fundamental rights. Those infringements even include deprivation of life, torture, ill-treatment, kidnappings and illegal detentions.

It also remains worrisome that the Russian occupation regimes continue to arbitrarily arrest even representatives of the most vulnerable groups — women, the elderly and children. Currently, there are still 11 Georgian citizens in lengthy illegal detention in both illegally occupied regions, among them Kristine Takalandze, Asmat Tavadze and Irakli Bebua, who has severe health problems. The consequences of the Russian illegal occupation and the severity of the human rights situation on the ground are once again clearly illustrated in this year's report (A/HRC/54/80), prepared by the United Nations High Commissioner for Human Rights.

In that regard, let me underline that the judgment of the European Court of Human Rights of 2021 confirmed the occupation and effective control of the Russian Federation over the Abkhazia and Tskhinvali regions of Georgia and Russia's full responsibility for the human rights violations on the ground. Moreover, another Strasbourg court decision of March this year affirms Russia's effective control over the Abkhazia region long before the August 2008 Russia-Georgia war.

Unfortunately, wars and conflicts continue to blight the lives of millions of people worldwide, depriving innocent civilians of their human rights, including the right to life. For the second year now, Russia's unjustified and unprovoked full-scale military aggression against Ukraine, in grave violation of international law, has been causing immense human suffering for the Ukrainian people. We reiterate our condemnation of Russia's war of aggression against Ukraine.

In conclusion, let me reiterate Georgia's commitment to the promotion and protection of human rights at both the national and the international levels, as well as our readiness to further contribute to the joint efforts of the international community to that end.

**Mr. Rizal** (Malaysia): Malaysia wishes to express its appreciation to Ambassador Václav Bálek, President of the Human Rights Council, for presenting the report of the Council (A/78/53 and A/78/53/Add.1). We also wish to commend the work of the Council's 2023 Bureau under his leadership.

The Human Rights Council plays a crucial role in strengthening the promotion and protection of human rights worldwide. Malaysia believes that the Human Rights Council should serve as an avenue for States Members of the United Nations to work collaboratively in advancing human rights, especially the rights of those most vulnerable. In order to foster a conducive environment that helps States better fulfil their human rights obligations, values such as constructive

engagement, cooperation, inclusivity, transparency and mutual respect must form the bedrock of the Council's work.

In line with our membership priorities, Malaysia continues to engage constructively in the Human Rights Council. We are continuously sustaining and strengthening our engagement with the Council's mechanisms, and we continue to support the invaluable work of the Office of the United Nations High Commissioner for Human Rights. Malaysia's active participation at the Human Rights Council is a manifestation of our unwavering commitment to the promotion and protection of human rights, both at home and globally.

Malaysia is pleased to note that consensus was achieved within the Human Rights Council on some issues this year, including on the issue of promoting and protecting economic, social and cultural rights within the context of addressing inequalities and the commemoration of the thirtieth anniversary of the International Year of the Family, as well as the renewal of the mandate of the Special Rapporteur on the situation of human rights in Afghanistan. We are also honoured that Council resolution 52/8, on promoting human rights and the Sustainable Development Goals through transparent, accountable and efficient public service delivery, which was sponsored by a core group comprising Malaysia, Azerbaijan, Ecuador, Georgia, Kenya, Thailand and Türkiye, at the fifty-second session of the Council, was also adopted by consensus. We hope that that will be an impetus for forging further consensus within the Council.

As we commemorate the seventy-fifth anniversary of the Universal Declaration of Human Rights and the thirtieth anniversary of the Vienna Declaration and Programme of Action this year, it is imperative that we reaffirm the sacrosanct principle that all human rights are universal, indivisible, interdependent and interrelated, and that all human rights are to be treated in a fair and equal manner on the same footing and with the same emphasis. As such, it is also imperative that all human rights violations be addressed with the same degree of urgency and vigour, irrespective of where they occur.

In that regard, Malaysia regrets that long-standing human rights violations, particularly the systematic oppression of Palestinians and Rohingyas, are allowed to persist. As a matter of fact, in the case of Palestine, we are witnessing the flagrant abuse of international law, including international human rights law, by Israel, the occupying Power, which is solidifying its apartheid practices in the occupied Palestinian territory. We must recall that apartheid and foreign occupation are recognized as human rights violations under the Vienna Declaration and Programme of Action. It is imperative that the Human Rights Council take affirmative action to bring such atrocities to a swift end, as per its mandate.

We also regret that established concepts within the human rights architecture, such as the right to development, the fight against racism, racial discrimination, xenophobia and related intolerance under the Durban Declaration and Programme of Action, as well as the impacts of unilateral coercive measures on human rights, continue to face opposition within the Human Rights Council. On the other hand, concepts that are inconsistent with existing human rights instruments, as well as national and regional particularities, are being persistently advocated. Such moves undermine the universality, indivisibility, interdependence and interrelatedness of human rights.

The three sessions of the Human Rights Council this year have shown an escalating workload of the Council. That trend, if allowed to continue, will become unsustainable and may risk undermining the Council's efficacy. It is important that the situation concerning the working methods of the Council be addressed urgently. An approach that could be considered is streamlining the issues to be discussed during the sessions of the Human Rights Council throughout the year so as to enhance efficiency without compromising the impact of such discussions and prevent the undue lengthening of future Council sessions.

There is also a need to enhance synergies between the Human Rights Council and processes in New York. In the past, there appears to be a disconnect between outcomes achieved within the Council and their integration into the broader New York processes. A holistic approach that harmonizes the three pillars of the United Nations must be adopted in order to achieve more effective and comprehensive outcomes.

It is also important to ensure that the resources allocated for the Human Rights Council are optimized for the Council to discharge its responsibilities effectively. That can be achieved not solely by increasing the financial allocation to the Human Rights Council, but it also requires a review of the Council's undertakings.

The Human Rights Council has accomplished a great deal since its founding. It is therefore crucial that we avoid actions that will undermine the immense value of the Council. As a member, Malaysia will continue its activism in the Council and will work constructively with all stakeholders to address global human rights issues.

**Mr. Alwasil** (Saudi Arabia) (*spoke in Arabic*): At the outset, I would like to sincerely thank His Excellency Mr. Václav Bálek, President of the Human Rights Council, for his valuable briefing, and I emphasize the firm and established position of the Kingdom of Saudi Arabia in support of international law and the principles stipulated in the Charter of the United Nations. I also emphasize the Kingdom's support and cooperation regarding everything that would protect and promote human rights internally and externally, including support for the efforts of the Human Rights Council.

In the first quarter of this year, the Human Rights Council adopted resolution 52/3, entitled "Human rights situation in the Occupied Palestinian Territory, including East Jerusalem, and the obligation to ensure accountability and justice". The Kingdom of Saudi Arabia stresses the importance of the urgent implementation of all demands included in that resolution.

The tragic events taking place in Palestine make it imperative that we take urgent action to put an immediate end to military operations, provide civilian protection and release hostages and prisoners, in compliance with international norms and laws and our common humanitarian principles. It is also imperative to find a peaceful solution to this crisis in order to get the region out of the recurring cycle of violence.

In that regard, the Kingdom of Saudi Arabia condemns and denounces any ground operations carried out by Israel because of the threat to the lives of Palestinian civilians and their exposure to further danger and inhumane conditions. We warn of the danger of continuing those flagrant and unjustified violations, which contravene international humanitarian law and international human rights law. That will lead to serious repercussions that undermine the stability of the region and regional and international peace and security.

In that regard, my country calls on the international community to assume its responsibilities to immediately stop that military operation, in accordance with resolution ES-10/21 of 27 October 2023, in order to spare the blood of innocent people, safeguard infrastructure and vital interests, respect international humanitarian law and international human rights law and enable humanitarian and relief organizations to deliver urgent and necessary humanitarian assistance to civilians in the Gaza Strip without impediments. My country also stresses the need for the brotherly Palestinian people to obtain all their legitimate rights, foremost among which are the rights to self-determination and the establishment of their independent State with Jerusalem as its capital, in accordance with Security Council resolutions and the Arab Peace Initiative.

The exercise of the right to the freedom of expression carries with it several duties and responsibilities, especially since the restrictions imposed on that right must be in the manner stipulated by law while ensuring respect for the rights or reputation of others, pursuant to international conventions. My country therefore condemns and denounces the repeated incidents of burning the Holy Qur'an in a number of countries, which constitute systematic provocation to the feelings of millions of Muslims throughout the world. We must ensure that such acts are not repeated in the future, as stated in Human Rights Council resolution 53/1, put forward by the Organization of Islamic Cooperation.

The Kingdom of Saudi Arabia welcomes the Council's adoption of resolution 54/17, entitled "Contribution of the implementation of the objectives of the International Year of the Family and its follow-up processes in the promotion and protection of human rights". My country believes in the important role of the family, as it represents the core of society and is the first platform for the development and education of the individual. We call for the consideration of mainstreaming family-oriented policies that promote and protect the human rights of all family members as a cross-cutting issue in national development plans through the work of the Office of the United Nations High Commissioner for Human Rights, treaty bodies, special procedures mandate holders and other relevant international and regional human rights mechanisms within their respective mandates and competencies. We also look forward to holding a debate on the role of the family in enhancing the protection and promotion of the human rights of its members to discuss the challenges and best practices in that regard during the fifty-seventh session of the Human Rights Council.

My country also welcomes the progress made in drafting an international convention on the right to

development and the Council's adoption of resolution 54/18, on the right to development, and salutes the next steps to be taken by the General Assembly. We hope that there will be international consensus regarding the right to development. My country attaches particular importance to the right to development, as it has adopted a development approach as a way to improve the standard of living and quality of life of our citizens in the context of ensuring a fair and equitable distribution of development dividends. The Kingdom's strategies have included the right to development in development plans as an integral part of those plans.

At the international level, my country recognizes the importance of international efforts to achieve the right to development. Through its development arm, the Saudi Fund for Development, we have provided more than 733 development loans to finance 695 development projects and programmes in 84 developing countries in various regions of the world in order to achieve sustainable and comprehensive development and safeguard the enjoyment of human rights by all.

In that regard, we welcome the adoption by the Human Rights Council of resolution 54/29, entitled "Technical assistance and capacity-building for Yemen in the field of human rights", which is included under agenda item 10. That demonstrates the readiness of Member States and the international community to support the efforts of the Yemeni National Committee and its reports issued in line with international standards. We commend the efforts of the legitimate Yemeni Government and its cooperation with the Office of the United Nations High Commissioner for Human Rights.

My country affirms that the Rohingya issue is one of the issues to which we attach great importance. We are following with great concern the suffering of the Rohingya Muslim minority and other minorities throughout Myanmar and beyond. My country commends the efforts of the Organization of Islamic Cooperation and all other international efforts to support the rights of the Rohingya Muslim minority, whether through the Human Rights Council or the work of the Third Committee of the General Assembly.

In conclusion, the Kingdom of Saudi Arabia reiterates its readiness to cooperate with the United Nations, its agencies, its mechanisms and all international efforts to protect and promote human rights and achieve well-being and prosperity for humankind as a whole.

**Ms. Squeff** (Argentina) (*spoke in Spanish*): Argentina expresses its appreciation to the President of the Human Rights Council, Ambassador Václav Bálek, for presenting the annual report of the Council (A/78/53 and A/78/53/Add.1) to the General Assembly.

Our country attaches great importance to the Human Rights Council as the main body of the universal system for the promotion and protection of human rights, which, as such, has helped to strengthen the human rights pillar of the United Nations. Since the Council's establishment, Argentina has strongly supported its work, and we will continue to do so with complete resolve and commitment.

My country was a founding member of the Human Rights Council in 2006, has been a member of the Council on five occasions and is currently a member. From that standpoint, Argentina has always promoted the Council as a universal human rights body that is strong and democratic, capable of addressing all relevant issues at the international level. In that context, we also highlight our country's support for, and cooperation with, all the special procedures of the Human Rights Council, particularly the Universal Periodic Review, believing that it is a meaningful and objective tool that allows for a dialogue among peers.

The banners of memory, truth and justice guide the institutions of Argentine democracy, together with respect for diversity and inclusion, which are central axes that Argentina assigns to its foreign policy. In that context, we wish to highlight the International Convention for the Protection of All Persons from Enforced Disappearance, which, together with France, Argentina actively promoted within the Council, and which is the outcome of the human rights movement's struggle over several decades. We are striving to make progress towards the universalization of the Convention — a crucial instrument in the fight against impunity.

We also highlight the crucial role of the Council as a promoter of the development of international human rights law. In that context, we value the Council's work in the promotion and protection of the rights of all persons, including women and girls, lesbian, gay, bisexual, transgender and intersex persons, older persons, persons with disabilities, Indigenous persons, Afro-descendants, refugees, migrants and those currently suffering great misfortune.

In that context, given the great misfortune affecting the world today, Argentina consistently upholds its commitment to promoting and defending human rights at the national and international levels, international law and international humanitarian law. In particular, we would like to highlight some decisions taken in recent years by my country's Government, such as the creation of the positions of the Special Representation on Sexual Orientation and Gender Identity in 2022 and the Special Representation for Feminist Foreign Policy in 2023. All that is a sign of our country's commitment to promoting actions that support the advancement of gender equality and the rights of women, girls and diversities.

At the multilateral level, Argentina will continue to promote the initiatives of the Working Group on Enforced or Involuntary Disappearances and the Special Rapporteur on the promotion of truth, justice, reparation and guarantees of non-recurrence, as well as the efforts of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity and the work of the Working Group on discrimination against women and girls.

In conclusion, I wish to once again reiterate my country's deep commitment to the Human Rights Council and to strengthening a strong, effective, efficient and impartial universal system that promotes the effective enjoyment of fundamental rights, favouring dialogue and cooperation.

**Mr. Tommo Monthe** (Cameroon): Cameroon thanks His Excellency Mr. Václav Bálek, Permanent Representative of the Czech Republic in Geneva and President of the Human Rights Council, for his report (A/78/53 and A/78/53/Add.1).

The leading role that the Human Rights Council plays in safeguarding human rights at the international level is undeniable. However, for all the resolutions that it adopts in Geneva to produce tangible results on the ground, it is important that they be accepted and appropriated by all countries. It is therefore essential that national and cultural contexts be taken into consideration in the discourse and practice of human rights. The distinctive spiritual, material, intellectual and emotional features of society or a social group, as well as lifestyles, ways of living together, value systems, traditions and beliefs, are particularly crucial in that regard. It is in line with those elements from the Universal Declaration on Cultural Diversity that human rights should always be appropriate and approached. It is with those elements in mind that we should never attempt to impose, in the name of human rights, a specific set of values on people that is not compatible with their own set of values.

(*spoke in French*)

Cameroon firmly believes in the value of economic, social and cultural rights and in the added value that they bring to the enjoyment of all other human rights. It is also true that it is difficult to enjoy a right without putting in place the infrastructure that underpins it. Large-scale investment is therefore needed in that regard in order to put in place the health, communications, transport and education infrastructure needed for the enjoyment of the right to life and to the freedom of expression, communication, thought and to come and go.

In that respect, my delegation congratulates the Human Rights Council on the adoption of resolution 54/22, entitled "Promoting and protecting economic, social and cultural rights within the context of addressing inequalities". That resolution marks a major turning point for the promotion and protection of economic, social and cultural rights. It calls on States to redouble their efforts to create conditions conducive to the realization of all human rights, particularly the mobilization of resources, while emphasizing the need to respect, protect and achieve economic, social and cultural rights in the context of combating inequalities within and among countries.

As Cameroon's term on the Human Rights Council comes to an end, my country is pleased to have contributed to the protection of all human rights. My country also welcomes the Council's adoption of the zero draft convention on the right to development (see A/HRC/WG.2/21/2, annex). We look forward with great interest to the start of the related negotiations here in New York, and we call on all countries to take an active part in that important process so that we remain on the right side of history.

It is true that human rights are truly universal in the sense that they are rooted in the very shape of the human condition that each of us carries. It is also true in the sense that the individual in question is not an individual in a particular category, but a being made of flesh and bone and of feeling, living in a given space and time. It is well known that time and space are markers of identity and the source of personal, social and cultural DNA. Such characteristics cannot be ignored in the

design and implementation of human rights. Otherwise, it would be like the cobbler who wanted to put the same shoe on every foot.

Finally, human rights must be provided with adequate material, financial, human and infrastructural resources. But that cannot be the case if resources are not allocated equitably among civil, political, economic, social and cultural rights, in particular the right to development, and if they are not also fairly distributed geographically across all regions of the world. On behalf of the 11 countries of Central Africa, we therefore request additional resources for the Subregional Centre for Human Rights and Democracy in Central Africa, set up in Yaoundé in 2001 at the request of the countries of the subregion, which deserves to be strengthened and revitalized given the many complex challenges facing the subregion.

**Mr. Elizondo Belden** (Mexico) (*spoke in Spanish*): Mexico thanks the President of the Human Rights Council, Mr. Václav Bálek, for presenting his report (A/78/53 and A/78/53/Add.1) on the past year's sessions of the Council, including its two special sessions.

Mexico recognizes the Human Rights Council as the main body of the Organization for the promotion and protection of human rights and fundamental freedoms. Its work is crucial to the development of higher and more effective human rights standards in order to guarantee a cross-cutting human rights approach throughout the United Nations system and ensure compliance with the international obligations that we States have in that area through mechanisms such as the Universal Periodic Review. Mexico also recognizes the valuable work of the special procedures mandate holders. It is important to ensure the best conditions for experts to be able to work independently.

As a current member of the Council and a candidate for the period from 2025 to 2027, Mexico has been characterized as a promoter of international cooperation, under the principles of good faith and the joint responsibility of States, and of the Council itself so as to generate synergies that enable compliance with the norms of international law and implement best practices in the field of human rights with a gender perspective and intersectionality.

The work of the Human Rights Council is key to overcoming multidimensional crises and emergencies arising from armed conflicts and geopolitical tensions, the long-lasting effects of the pandemic and economic, social and environmental crises. The challenges of the times, marked by polarization, demand that even procedural issues be dealt with in a constructive manner on the basis of dialogue and in accordance with the rules.

Mexico underlines the importance of civil society participation. Its diverse views are invaluable in understanding human rights situations on the ground. Likewise, the Council should continue to explore measures to increase the participation of Indigenous peoples in matters that concern them.

It is also important for the Council's Bureau to have clear and transparent criteria, particularly in its consultations with regional groups, for the selection of special procedures mandate holders. Mexico calls on Member States to strengthen their cooperation with the Bureau, particularly the President, so as to support him in his efforts to improve the Council's efficiency. Efforts to close the gap between the Council's increasing workload and its allocated resources, be they material, human or time-related, should also take the rationalization of the Council's work into account. From our perspective, the shortening of intersessional periods has limited the time for reflection, implementation, follow-up and planning of initiatives.

The body of human rights law is one of the most important contributions of multilateralism to international law. It is important to strengthen the effectiveness of the human rights treaty bodies. The seventy-fifth anniversary of the Universal Declaration of Human Rights is an opportunity to renew our commitment to the universal human rights system.

The Assembly can count on Mexico's support for the Council's work and our backing the strengthening of the universal human rights system in order to contribute to higher standards and more effective international cooperation.

**Mr. Al-Sabah** (Kuwait) (*spoke in Arabic*): In this forum of the General Assembly, we shed light today on an issue that is one of the most important items on our agenda. This is particularly true given the recent blatant human rights violations witnessed by the world. The State of Kuwait appreciates the efforts of the Human Rights Council as detailed in the report contained in document A/78/53 that describes the Council's work in supporting human rights. It calls for respect for the principles of human rights and the promotion of their role within the international community.

In that regard, I would like to note, from this rostrum, that the State of Kuwait was elected on 10 October 2023 to be a member of the Human Rights Council for the term 2024–2026. The large number of votes in favour of the State of Kuwait, namely 183, is a testimony to my country's respect for human rights and its effective role in that field. I reiterate our sincere thanks to them for the trust they placed in us. We reaffirm to them and to all members of the international community that the State of Kuwait remains faithful to its obligations, as always, while undertaking its responsibilities diligently and honestly. We will continue our active engagement in all platforms at all times.

The State of Kuwait attaches great importance to addressing the challenges facing multilateralism, including primarily the United Nations and its relevant bodies, in order to ensure the realization and protection of human rights. My country is keen to continue its effective role in the Human Rights Council and the Office of the United Nations High Commissioner for Human Rights. Both work to ensure that all people can enjoy their basic rights in accordance with United Nations goals and principles, as enshrined in its Charter. That is aligned with our common aspiration for a world that strengthens sustainable development in the framework of peace and security.

National compliance with human rights is today a measure of the advancement of States and communities. The Charter of the United Nations plays an important role in promoting and protecting human rights and freedoms. The Charter incorporates those principles in the goals of 2030 Agenda for Sustainable Development. Sustainable Development Goal 16 calls for establishing peaceful and inclusive societies, providing access to justice for all. That requires us to intensify our collective efforts to translate that Goal into a reality.

The Constitution of the State of Kuwait contains stipulations, in its articles 7, 8, 29 and 30, on respecting human rights in line with relevant international laws, including the Universal Declaration of Human Rights. Our Constitution reaffirms respect for and protection of those rights, as it is based on the principles of justice and equality. For example, it provides and guarantees health-care, education, cultural and social services for all. Moreover, the State of Kuwait contributes effectively in humanitarian efforts at the international level, in line with the principles of its foreign policy, namely, upholding international peace and security, non-interference in the internal affairs of other States and respect for human rights. Through the Kuwait Fund for Arab Economic Development, my country provides support to all without any discrimination on the basis of religion, race or any other reason.

Enhancing the role of women within the community is an utmost priority for us. The State of Kuwait established the Ministry of Women and Childhood Affairs. Our Constitution guarantees gender equality, and it is worth mentioning that my country has acceded to the Convention on the Elimination of All Forms of Discrimination against Women. Unfortunately, violations of human rights continue to occur across all regions of the world. That results in complex challenges requiring a wise and careful response by the international community.

The State of Kuwait strongly condemns the continued criminal acts of Israeli occupation forces in the occupied Palestinian territories, including the illegal settlements, the unlimited violations that have become very evident and clear to the entire international community against the defenceless Palestinian civilian population, and the ongoing violation and desecration of the sanctity of holy sites. Those practices constitute a blatant violation of international law and international humanitarian law, let alone relevant Security Council resolutions. The suffering of the Palestinian people has been ongoing for a long time. It is incumbent upon the international community to make serious efforts to stop those massacres, which are being committed under the guise of self-defence.

The Kuwaiti people are very aware of what a heinous occupation means. We suffered during the unjust Iraqi invasion in 1990 from crimes against humanity and violations that undermine human dignity. After God, we have to thank our brotherly States in the Gulf Cooperation Council and the international coalition forces that participated in the liberation war of Kuwait. This was a victory not only for the State of Kuwait, but also for the United Nations Charter and international laws and norms.

In that context, my country reiterates the need for compliance with all international laws and norms, particularly international humanitarian law, at times of war and armed conflict. There are unfortunately blatant violations of human rights committed under the pretext of freedom of expression, including acts of hatred towards Muslims and Islamophobia that have been witnessed in several Western countries. Those acts would only ignite hatred and generate violence

among peoples. The State of Kuwait calls on the international community to take a firm position to address those phenomena and any other phenomena related to religious phobia, stressing the need to respect religions to reach peaceful coexistence among peoples.

In conclusion, my country stresses the importance of promoting and respecting human rights, as peace is an integral part of human rights. Achieving that goal requires cooperation and coordination with United Nations bodies and governmental and non-governmental organizations to build a more sustainable world.

**Mr. Jiménez** (Nicaragua) (*spoke in Spanish*): We align ourselves with the statement delivered by the representative of the Bolivarian Republic of Venezuela on behalf of the Group of Friends in Defence of the Charter of the United Nations.

The Government of Reconciliation and National Unity of Nicaragua would like to draw attention to the unequal way in which international bodies and organizations, such as the Human Rights Council, apply human rights among different countries, using double standards with respect to the atrocities committed by imperialists and neocolonialists. That unequal approach allows human rights to be manipulated and instrumentalized for other purposes and hegemonic pretences based on imperialist economic and political interests, affecting the dignity and sovereignty of peoples who seek to shape their own destiny without any foreign interest. The Human Rights Council should support an approach to the promotion, protection and development of human rights that promotes the exercise and strengthening of those rights within a framework of respect for the identity, sovereignty and historical development of every country. It should do so without losing sight of the universality of human rights in the declarations, resolutions, agreements and mandates it adopts, which should cite clearly the information sources that are used in their analyses, which must be impartial and objective.

The annual report of the Council (A/78/53) includes a resolution on Nicaragua that is completely biased (Human Rights Council resolution 52/2). The resolution, including the mechanisms adopted unilaterally against Nicaragua, seeks to continue to discredit and denigrate our national authorities and institutions and the legal system that underpins the Nicaraguan State on the basis of false and totally biased information, with a view to interfering in our affairs, disrespecting our sovereignty and independence and echoing the interventionist policy of the United States of America and some European countries towards our people.

We will always reiterate our total rejection of any kind of resolution that is biased and not in line with the efforts that we, as a country, have been taking to ensure the continuity of our process of structural changes aimed at guaranteeing progressive improvements to the Nicaraguan nation's exercise of human rights and ensuring sustainable development throughout our territory. We are referring with full authority to the right to life, the right to health, the right to education, the right to work, the right to drinking water, to electricity, to housing, women's rights, the rights of children, youth, older persons, the fight against extreme poverty, the eradication of illiteracy, public safety, the legal security of property, and the rights of Indigenous and Afrodescendent peoples, among other rights in respect of which we have made great strides.

Moreover, our Government categorically rejects the establishment and the unilateral designation of the so-called Group of Human Rights Experts on Nicaragua mentioned in the report (A/78/53). That Group is nothing more than a smokescreen for a presumed, non-existent legality in its reports on Nicaragua, which disseminate subjective, distorted and false situations and facts about our reality, acting at the behest of the United States and certain European countries.

Nicaragua has never been — nor is it now — a threat to any country in the world. We are a peaceful, decent and dignified country in the international community, a country that demands justice and equality. We therefore demand that the human rights of all Nicaraguans be defended and that all illegal unilateral coercive measures against our people — measures that directly target Nicaraguans' essential human rights, constituting a true crime against humanity — be eliminated. Even so, those unjust and illegal unilateral coercive measures against our country neither discourage nor intimidate us, and we will remain steadfast in the struggle to achieve the maximum level of effectiveness for our political, economic and social democracy.

We once again call on the Human Rights Council to assume its responsibilities to the history of humankind by recognizing and respecting the inalienable right of the peoples of the world to make their own decisions and to live in peace, with sovereignty, respect and humane consideration.

**Mr. Tun** (Myanmar): First of all, Myanmar thanks the President of the Human Rights Council for introducing its report (A/78/53) to the Assembly. We have well noted the work done by the Council to promote better human rights standards.

The Human Rights Council is a key forum within the United Nations system for achieving international cooperation in promoting and encouraging respect for human rights and for fundamental freedoms for all. The Council was charged with the responsibility of promoting universal respect for the protection of all human rights in a fair and equal manner. The General Assembly gave the Council the mandate to address situations of human rights violations around the world and the ability to discuss all thematic human rights issues, together with the principles that are to guide its work.

The 47 Member States of the Human Rights Council bear a collective responsibility to enhance the protection and enjoyment of human rights by all people, regardless of where they are and who they are. Amid the mounting human rights violations, especially in intensifying conflicts, Council members' close cooperation and determination to uphold human rights are more important than ever. We appreciate the contributions to the Council's work made by the Office of the United Nations High Commissioner for Human Rights, mandate holders, non-governmental organizations and civil society.

The situation of human rights in Myanmar has been under the continuous attention of the Human Rights Council for more than two decades, since it took over from its predecessor, the Human Rights Commission. Unfortunately, that long-standing attention indicates that the structural barriers that hinder the enjoyment of fundamental human rights by the people of Myanmar have yet to be addressed. Those structural barriers centre around the fact that the military has controlled law enforcement and rule of law institutions and kept itself unaccountable to any democratic civilian authority, even before 2021.

Since the illegal military coup in 2021, the human rights situation in Myanmar has deteriorated to the lowest level. The illegal military junta has essentially destroyed the rule of law, which is a fundamental protector of human rights. Law enforcement, prosecutorial authority, courts, banking and information and communications technology have all been transformed into tools of the junta's oppression. With no legality or legitimacy, the junta has been waging a campaign of brutal violence against the population in order to contain the growing resistance to their attempted coup. Their jets have indiscriminately bombed the civilian population. Their ground operations forces have committed brutal massacres of civilians, including children and aid workers. They have burned down residential towns and villages, destroying hospitals, schools, religious buildings and livelihoods.

Those attacks are being committed by the military forces in a widespread and systematic manner. The Independent Investigative Mechanism for Myanmar (IIMM) states in its report that "there is strong evidence indicating that serious international crimes are being inflicted against the people in Myanmar" (A/HRC/54/19) and in its bulletin that "it almost daily receives new reports of alleged war crimes and crimes against humanity committed in Myanmar". Thus far, a culture of total impunity persists unabated in Myanmar.

The Human Rights Council is fully and regularly kept informed of that worsening situation by the United Nations High Commissioner for Human Rights, the Special Rapporteur on the situation of human rights in Myanmar and the IIMM in their numerous reports to the Council. The Council has responded accordingly. Since February 2021, the Council has adopted a total of seven resolutions on Myanmar, including two in 2023 (Human Rights Council resolutions 53/26 and 52/31). They were all adopted without a vote. That means that the calls in the resolutions were made with the overwhelming support of the membership. Myanmar welcomes the adoption of those resolutions. In its resolutions, the Council explicitly condemned the coup, called for the immediate release of all arbitrary detainees, including President Win Myint and State Counsellor Daw Aung San Suu Kyi, and called on the military junta to cease all air strikes, arson attacks and killings of civilians, among other such acts.

In its resolution 52/31, the Human Rights Council called upon all States refrain, in accordance with applicable national procedures and international norms and standards, from the export, sale or transfer of surveillance goods and technologies and less lethal weapons when they assess that there are reasonable grounds to suspect that such goods, technologies or weapons might be used to violate or abuse human rights. Also in its resolution 52/31, the Council requested the Secretary-General to call the continued attention of the Security Council to the situation in Myanmar and to

continue as necessary with concrete recommendations for action. That request has also been made repeatedly by the General Assembly in its resolutions. We urge the Secretary-General to implement the request.

Another key call made by the Human Rights Council pertaining to Myanmar is for the creation of conditions conducive to the safe, voluntary and dignified repatriation of the Rohingya from Bangladesh. We sympathize with the Rohingya living in deplorable conditions for years. However, there is little or no prospect for their repatriation to happen in a sustainable manner under the military junta, which committed atrocities against them and is now waging the same brutalities against its own people across the country. The safe and sustainable repatriation of the Rohingya depends on whether we are able to restore democracy and the rule of law in the country and place the military under democratic oversight.

Accordingly, Myanmar wishes to advise that the draft resolution regarding Myanmar to be presented this year by the European Union and the Organization of Islamic Cooperation to the Third Committee of the General Assembly should contain at least those elements of the two aforementioned resolutions, as is appropriate and fair. It will make the draft resolution reflect rightly the current situation on the ground.

The international community's repeated calls through the Human Rights Council, the General Assembly and the Security Council to end violence, to implement the Association of Southeast Asian Nations five-point consensus and to provide unhindered humanitarian access have been woefully disregarded by the military junta. It is long overdue for the international community, especially the Security Council, to move from words to decisive actions in order to stop the military from further committing serious international crimes, end the military's impunity and create an environment for a sustainable solution in Myanmar. Meanwhile, the Human Rights Council continues to have a key role to play in responding to the Myanmar crisis.

I wish to take this opportunity to urge the Council to continue to do the following. First, it should continue to pay greater attention to the human rights situation in Myanmar. Secondly, it should support its special procedure mandate-holders on Myanmar, the IIMM and the Office of the High Commissioner in monitoring human right violations and collecting and preserving evidence of serious international crimes in Myanmar. Thirdly, it should give serious consideration to their recommendations. Fourthly, it should use all possible ways and means, through new and innovative thinking, to hold perpetrators accountable via the Security Council and international justice systems. Fifthly, it should, in line with the letter and spirit of the Charter of the United Nations, give opportunities to the people of Myanmar, civil society organizations of Myanmar, human rights defenders and their legitimate government representatives to have their voices heard. Last but not least, it should help to restore the fundamental democratic right of the people of Myanmar to elect their Government and live in peace under the rule of law.

**The Acting President**: We have heard the last speaker in the debate on this item for this meeting. We shall hear the remaining speakers on a date to be determined.

*The meeting rose at 1 p.m.*